

MUTUAL NON-DISCLOSURE AGREEMENT

THIS MUTUAL NON-DISCLOSURE AGREEMENT is made between:

NV FILM STUDIOS PROPRIETARY LIMITED

a private company duly incorporated in accordance with the laws of the Republic of South Africa,

Registration Number: 2020/184653/07,

having its principal place of business at Lourensford Estate, Lourensford Avenue, Somerset West, Cape Town

("NVFS")

and

AFRINOVA ENTERTAINMENT GROUP INC.

a company incorporated in the State of Delaware, United States of America,

Registration Number: 10621580,

having its registered address at _____

("Afrinova")

(NVFS and Afrinova are collectively referred to as the
"Company Parties")

and

Company Name

State of Loc Nation Global Public
a company incorporated in accordance with the applicable laws of the United States, Benefit Corp.

Registration Number: _____,

having its principal place of business at 8 The Green Doree DE 19901

("XXX") S.O.L.N.G.P.B.C

S.O.L.N.G.P.B.C

(each of the Company Parties and XXX is individually referred to as a
"Party" and collectively as the "Parties")

BACKGROUND

- (1) The Parties are engaged in discussions regarding a potential business relationship in connection with a ~~potential merger and/or acquisition transaction~~ (the "Transaction").
Amend: Strategic Partnership c/c
- (2) It is anticipated that NVFS will become a wholly-owned subsidiary of Afrinova upon completion of the Transaction. NVFS and Afrinova are accordingly engaging with XXX as the Company Parties for the purposes of this Agreement.
- (3) A Party may request from the other(s) (in such case, the "Recipient") and/or disclose to the other(s) (in such case, the "Disclosing Party") certain business, financial, technical, and other Confidential Information (as defined below) concerning their respective businesses and affairs that is not available to the public.

IN CONSIDERATION OF THE ABOVE IT IS HEREBY AGREED as follows:

1. Definitions

"Confidential Information" shall mean any and all information disclosed to, or otherwise acquired or observed by, a Party including its affiliated companies, subsidiaries, directors, officers, consultants and employees (collectively, "Recipient's Representatives"), from the Disclosing Party or its affiliated companies, relating to the business of the Disclosing Party, whether communicated in writing, orally, electronically, photographically, or in recorded or any other form, including, but not limited to, all sales and operating information, existing and potential business and marketing plans and strategies, financial information, cost and pricing information, data media, know-how, designs, drawings, specifications, source codes, technical information, concepts, reports, methods, processes, techniques, operations, devices, and the like, whether or not the foregoing information is patented, tested, reduced to practice, or subject to copyright.

The term "Confidential Information" does not include information which (i) becomes generally available to the public other than as a result of disclosure by Recipient in breach of this Agreement; (ii) was available to Recipient on a non-confidential basis as shown in written records prior to its disclosure to Recipient by Disclosing Party; (iii) becomes available to Recipient on a non-confidential basis from a source other than Disclosing Party, provided that such source is not bound by a confidentiality agreement with Disclosing Party or is otherwise prohibited from transferring the information to Recipient by a contractual, legal or fiduciary obligation; or (iv) is independently developed by Recipient without any use of or benefit from the Confidential Information and such independent development can be documented by Recipient with written records.

2. Non-Disclosure

In consideration for the receipt of Confidential Information, Recipient shall hold all Confidential Information in confidence and with the same degree of care it uses to keep its own similar information confidential, but in no event shall it use less than a reasonable degree of care; and shall not, without the prior written consent of Disclosing Party, disclose such information to any person for any reason at any time; provided, however, it is understood that Recipient may disclose any of the Confidential Information to those of

the Recipient's Representatives who actually need such material for the purpose of evaluating the proposed Transaction on the condition that, prior to such disclosure, such Recipient's Representatives have agreed to comply with the terms of this Agreement.

The Company Parties shall be jointly and severally bound by the obligations of this clause 2 in respect of Confidential Information disclosed by or on behalf of either NVFS or Afrinova, including any Confidential Information disclosed in connection with the anticipated subsidiary relationship between them.

Notwithstanding anything herein to the contrary, neither Party may disclose the other Party's Confidential Information to any competitor of the other Party without such other Party's prior written consent. The term "person" as used in this Agreement shall be broadly interpreted to include, without limitation, any corporation, company, partnership or individual.

3. Use

Recipient shall not use any Confidential Information for any reason or purpose other than as necessary in connection with evaluating, negotiating, and implementing the Transaction. Recipient agrees to make no other use of the Confidential Information.

4. Ownership

Recipient recognizes that all Confidential Information furnished by the Disclosing Party is and shall be the sole property of Disclosing Party, and Recipient shall keep the same at all times in its custody and subject to Recipient's control. The Recipient does not hereby and shall not acquire by implication or otherwise any right in or title to or licence in respect of the Confidential Information disclosed to it by the other Party.

5. Compelled Disclosure

In the event that Recipient or any of Recipient's Representatives is requested or required (by oral questions, interrogatories, requests for information or documents, subpoena, civil investigative demand or similar process) to disclose any of the Confidential Information, it is agreed that Recipient or such Recipient's Representative, as the case may be, will, to the extent legally permitted, provide Disclosing Party with prompt notice of such request(s) so that Disclosing Party may seek an appropriate protective order or other appropriate remedy and/or waive compliance with the confidentiality provisions of this Agreement. In the event that such protective order or other remedy is not obtained, or Disclosing Party grants a waiver hereunder, Recipient or such Recipient's Representative may furnish that portion (and only that portion) of the Confidential Information which, in the opinion of Recipient's counsel, Recipient is legally compelled to disclose and will exercise its reasonable best efforts to obtain reliable assurance that confidential treatment will be accorded any Confidential Information so furnished.

6. Return of Confidential Information

Promptly following the earlier of (i) the termination of this Agreement and (ii) the written request of Disclosing Party, Recipient will destroy or deliver to Disclosing Party all documents or other materials furnished by Disclosing Party to Recipient constituting

Confidential Information, together with all copies thereof, including computer disks in the possession of Recipient; provided, that Recipient may retain one copy of such documents and other materials furnished by Disclosing Party to the extent required by law. In the event of such request, all other documents or other materials constituting Disclosing Party's Confidential Information, together with all copies thereof in the possession of Recipient, will be destroyed with any such destruction confirmed by Recipient in writing to Disclosing Party. Notwithstanding the foregoing, legal counsel for the Recipient may retain, solely for archival purposes, one copy of all Confidential Information as well as documents, memoranda, notes and other writings prepared based on the Confidential Information.

7. No Warranties

Save as may be subsequently agreed in writing, neither Party makes any representation or warranty as to the accuracy or completeness of the Confidential Information.

8. No Obligation

Neither Party shall make any commitment or incur any expense or charge for or in the name of the other Party. Neither has any obligation by virtue of this Agreement to procure any products or services from the other Party. Neither execution nor performance of this Agreement shall be construed or deemed to have established any joint venture or partnership or have created the relationship of principal and agent between the Parties. For the avoidance of doubt, this Agreement will not preclude the Recipient from pursuing or engaging in business relationships or transactions which may involve or otherwise relate to the Disclosing Party, its stakeholders, competitors or any other person, provided that nothing in this clause shall limit the obligations of confidentiality of the Recipient herein with respect to the Confidential Information.

9. Remedies

Recipient acknowledges that money damages may be both incalculable and could be an insufficient remedy for any breach of this Agreement by Recipient and that any such breach may cause Disclosing Party irreparable harm. Accordingly, Recipient also agrees that, in the event of any breach or threatened breach of this Agreement, Disclosing Party, in addition to any other remedies at law or in equity it may have, shall be entitled, without the requirement of posting a bond or other security, to seek equitable relief, including injunctive relief and specific performance.

10. Scope and Termination

This Agreement is intended to cover Confidential Information disclosed by each Party as from and subsequent to the date hereof. This Agreement may be terminated by either Party by giving the other Parties no less than thirty (30) days' prior written notice; provided, however, that, notwithstanding anything herein to the contrary, each Party's obligations with respect to each item of the other Party's Confidential Information will survive for a period of five (5) years following the date of this Agreement. This Agreement, and the obligations created hereby, shall be superseded by any subsequent definitive agreement in writing which is entered into between the Parties regarding the Transaction.

11. Dispute Resolution

- 11.1 For the purposes of this Agreement, "Dispute" means any contractual or other dispute, controversy, difference, claim, or question of interpretation arising out of, or in connection with, this Agreement or the breach thereof.
- 11.2 Informal Negotiations. In the event of any Dispute, prior to filing a notice of a claim, the Party claiming a Dispute shall send a written notice to the other Parties describing the basis for the Dispute and the requested remedy, and inviting the other Parties to have their executives confer to attempt to negotiate a resolution. The claiming Party may file the notice of the claim in accordance with clause 11.3 after the executive conference is completed, if the invitation to confer is declined, or if, within ten (10) business days after the Dispute notice is delivered, there is no response to the invitation or the Parties are unable to schedule the conference.
- 11.3 Arbitration. Any and all Disputes not resolved through the process set out in clause 11.2 shall be finally settled by binding arbitration administered by the American Arbitration Association ("AAA") in accordance with its Commercial Arbitration Rules, as follows: (i) the arbitration shall be governed by the Federal Arbitration Act and, to the extent not inconsistent therewith, the laws of the State of Delaware; (ii) the seat and place of arbitration shall be Wilmington, Delaware; (iii) the decision of the arbitrator(s) shall be final and binding on the Parties; (iv) the tribunal shall consist of one arbitrator agreed upon by the Parties, or, failing agreement within ten (10) business days of a request for arbitration, appointed by the AAA; and (v) the arbitration proceedings shall be conducted in the English language.

12. Governing Law

This Agreement shall be governed by and interpreted in accordance with the laws of the State of Delaware, United States of America, without regard to its conflict of laws principles.

13. Amendments

This Agreement may not be and shall not be deemed or construed to have been modified, amended, rescinded or cancelled in whole or in part, except by written instrument signed by all Parties hereto which makes specific reference to this Agreement and which specifies that this Agreement is being modified, amended, rescinded or cancelled.

14. Severability

If any provision of this Agreement shall be declared invalid or illegal for any reason whatsoever, then, notwithstanding such invalidity or illegality, the remaining terms and provisions of this Agreement shall remain in full force and effect in the same manner as if the invalid or illegal provision had not been contained herein.

15. Waivers

No failure on the part of either Party to exercise, and no delay in exercising, any right or remedy hereunder shall operate as a waiver thereof, nor shall any single or partial exercise of any right or remedy hereunder preclude any other or a future exercise thereof

or the exercise of any other right or remedy granted hereby, or by any related document, or by law. Any failure of a Party to comply with any obligation contained in this Agreement may be waived by the Party entitled to the benefit thereof only by a written instrument duly executed and delivered by the Party granting such waiver, which instrument makes specific reference to this Agreement and the provision to which it relates.

16. Entire Agreement, No Assignment and Counterparts

This Agreement contains the entire agreement and understanding between the Parties hereto relating to the subject matter hereof and supersedes all other prior agreements and understandings, both written and oral, between the Parties with respect to the subject matter hereof. This Agreement may not be assigned by any Party by operation of law or otherwise without the written consent of the other Parties, which consent shall not be unreasonably withheld or delayed, except that any Party may, upon prior written notice to the other Parties (but without any obligation to obtain their consent), assign this Agreement or any of its rights hereunder to any affiliate or subsidiary of such Party, or to any entity who succeeds (by purchase, merger, operation of law or otherwise) to all or substantially all of the capital stock, assets or business of such Party, if such entity agrees in writing to assume and be bound by all of the obligations of such Party under this Agreement. For the avoidance of doubt, NVFS may assign this Agreement to Afrinova (or any Afrinova affiliate) in connection with the anticipated Transaction without requiring the consent of XXX. This Agreement may be executed in several counterparts, each of which will be deemed an original, and all of which taken together will constitute one single Agreement between the Parties with the same effect as if all the signatures were upon the same instrument. Electronic signatures shall be deemed valid and binding.

17. Warranty of Authority

Each person signing this Agreement on behalf of a Party warrants that such Party has the full power, authority, and legal right to execute, deliver, and perform its obligations under this Agreement, and that such execution has been duly authorised by all necessary corporate action.

IN WITNESS WHEREOF, the Parties hereto have caused this Agreement to be executed by their duly authorized representatives effective as of the date first written above.

NV FILM STUDIOS PROPRIETARY LIMITED

Signature:

Name:

Title:

Date:

AFRINOVA ENTERTAINMENT GROUP INC.

Signature:

Name:

Title:

Date:

COMPANY NAME State of Loc Nation G.P.B.C

Signature: *Ser G. Clement*

Name: *Chestina Clement*

Title: *Founder*

Date: *July 31, 2026*